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Gavin Newsom signs California gun tax, new concealed carry rules. Firearms groups promptly sue

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Gov. Gavin Newsom signed a series of bills Tuesday to further strengthen California's gun control measures, drawing praise from anti-gun violence advocates and prompting legal action from firearm rights groups.

The measures include limiting where concealed weapons can be carried in public, imposing a first-of-its-kind state excise tax on firearm sales and requiring that certain guns contain technology that makes it easier to trace ammunition back to a gun owner.

"We recognize humbly that we're not solving every one of the cases or an incident, we're solving for a pattern and that's the important point," Newsom said.

"We have a responsibility to do more and continue to lead in that conversation."

The governor's announcement was shortly followed by a lawsuit from a gun rights group, teeing up a legal battle that could end up at the U.S. Supreme Court.

Newsom and legislators already have passed some of the nation's strictest gun control laws. They range from restrictions on the size of ammunition magazines, a ban on assault weapons and a crackdown on ghost guns — privately-made firearms without serial numbers, often sold as unassembled kits.

Yet many of the state's efforts have been blocked or overturned by San Diego federal judge Robert Benitez, an appointee of President George W. Bush.

Despite those legal setbacks, a series of deadly shootings earlier this year across California compelled Democrats in Sacramento to do more to curb gun violence.

"You cannot be tough on crime if you are not tough on guns," said Attorney General Rob Bonta. "We are tough on guns. We are committed to gun safety."

California also has among the lowest gun death rates in the country, ranking 43rd out of 50 states, according to 2021 data from the Centers for Disease Control and Prevention.

Lawsuit filed over California's concealed carry laws

Senate Bill 2 was one of the most notable measures Newsom signed.

The legislation, authored by Sen. Anthony Portantino, D-Burbank, strengthens the state's concealed carry regulations, which had key provisions struck down by the U.S. Supreme Court's June 2022 decision in New York State Rifle & Pistol Association, Inc. v. Bruen.

SB 2 requires those who want to carry firearms in public to be 21 or older and have had at least 16 hours of training. It also prohibits permit holders from carrying guns into a long list of settings such as schools, courthouses, government buildings, prisons, hospitals, airports and bars.

SAC_GunBills_06_HA_09262023.JPGGov. Gavin Newsom and Attorney General Rob Bonta listen to state Sen. Anthony Portantino, D-Burbank, on Tuesday as he talks about his bill that strengthens the state's concealed carry

regulations.

Upon the governor’s signature, a group of gun rights groups filed a lawsuit requesting an injunction to prevent SB 2 from taking effect. The plaintiffs in the case include three individuals, Firearms Policy Coalition, Orange County Gun Owners, San Diego County Gun Owners, and California Gun Rights Foundation.

The lawsuit argues that the law paints too broad of a brush with its list of “sensitive places” where permit holders are prohibited from carrying.

“The governor is plainly on the wrong side of history, and it’s only because he’s unwilling to read the text of the Second Amendment and read the decisions of the Supreme Court,” said Sam Paredes, executive director of Gun Owners of California. “Whether he likes them or not, they are the law of the land.”

Will California gun laws hold up in court?

A federal judge, ruling in a similar case in Hawaii, recently granted a temporary restraining order against the state’s ban on firearms in public places, such as beaches and restaurants.

Paredes said he was “confident that SB 2 would also be overturned,” pointing to another federal judge’s recent decision to overturn — for a second time — California’s ban on large-capacity ammunition magazines.

The National Rifle Association also vowed to fight the bills the governor signed into law, saying the organization plans on “standing firm with the majority of Americans in opposition to Newsom’s draconian initiatives.”

“The NRA condemns the legislation enacted by Gov. Newsom,” said Dan Reid, NRA Western Regional Director, in a statement. “It is a blatant and egregious attack on the rights of law-abiding Californians and a calculated maneuver to dismantle the Second Amendment.

SAC_GunBills_02_HA_09262023.JPGGov. Gavin Newsom presses his hands together on Tuesday after signing three gun control bills, including ones authored by Assemblyman Jesse Gabriel, D-Woodland Hills, left, and state Sen. Catherine Blakespear, D-Encinitas, right.

Last year, the U.S. Supreme Court invalidated laws in eight states, including California, that required concealed carry applicants to provide reasons for needing a gun in public and to demonstrate that they would handle it properly. The ruling did not prohibit California from having a permit approval process but said the state could not disqualify someone based on reasons offered in an application.

Newsom acknowledged the recent legal defeats on Tuesday, saying that the gun control laws California is attempting to enact “may not be enough.”

“These are all national leaders that are assembled here today,” he said. “But it’s going to require a national construct, a national frame in order to ultimately address this.”

Newsom has launched a national campaign to amend the U.S. Constitution to prohibit the sale of guns to people under 21, mandate extensive background checks, establish a waiting period for purchases and ban the sale of assault rifles.

Gun control advocates applauded the governor for advancing the policies.

“Raising the minimum age to carry concealed firearms and creating sensitive place restrictions will ensure that our communities and families are more protected from gun violence in public locations,” said Kris Brown, president of Brady: United Against Gun Violence, in a statement. “This is all the more vital following last year’s disastrous Supreme Court decision in Bruen.”

Imposing an excise tax on guns

Under a first-of-its-kind law enacted by Newsom, gun manufacturers, vendors and dealers in California will be required to pay an 11% tax on firearms and ammunition starting July 1, 2024. Revenue raised will go toward violence prevention programs and to add increased security at public schools.

“Enough is enough,” Assemblyman Jesse Gabriel, D-Woodland Hills, who authored the legislation. “It’s time to prioritize the safety of our kids over the gun industry profits.”

SAC_GunBills_07_HA_09262023.JPGGov. Gavin Newsom, center, stands with gun control bill authors, from far left, state Sen. Anthony Portantino, D-Burbank, state Sen. Catherine Blakespear, D-Encinitas, and Assemblyman Jesse Gabriel, D-Woodland Hills, after he signed their bills Tuesday, Sept. 26, 2023.

Multiple lawmakers have pursued gun and ammunition tax bills during the past decade, but Gabriel’s Assembly Bill 28 was the first to make it to the governor’s desk.

Gun and ammunition sellers will pay the new state tax on top of a century-old federal excise tax of up to 11% to fund wildlife conservation efforts. The federal tax has been in place since 1918 and has survived multiple lawsuits

Paredes of Gun Owners California said the organization plans to file a separate suit against the state over the new state tax but would do so closer to the date it takes effect.

Other gun legislation signed by Gavin Newsom

« Senate Bill 452, authored by Sen. Catherine Blakespear, D-Encinitas. It would require that, starting July 1, 2028, all semiautomatic pistols sold in California use microstamping technology to etch unique identifiers on expended cartridges. This would help law enforcement trace bullets back to a specific gun and owner.

« Assembly Bill 92, from Assemblyman Damon Connolly, D-San Rafael. This bill will make it a misdemeanor for anyone who is prohibited from possessing a firearm to purchase or possess body armor. It was drafted in response to several recent mass shootings where the perpetrator wore body armor, such as bulletproof vests, to try and fend off shots fired by law enforcement.

« Assembly Bill 1587, from Assemblyman Phil Ting, D-San Francisco. It requires banks and credit card companies in California to track firearm sales by logging them under a newly developed merchant category code. The goal of the legislation, according to Ting, is to flag suspicious purchases of guns and ammunition such as instances where someone may be accumulating a dangerous arsenal or trafficking firearms.

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